IN THE HIGH COURT OF ORISSA AT CUTTACK

ABLAPL No.11931 of 2026

CNR No. ODHC010799612026

Bikash Kumar Mohanty **.....** ***Petitioner***

Represented by Adv. - Manoj Kumar Panda

-versus-

STATE OF ODISHA **.....** ***Opposite Parties***

Smt. Siva Mohanty, ASC

CORAM:
THE HON'BLE MR. JUSTICE ADITYA KUMAR MOHAPATRA

ORDER
23.10.2026

Order No.

01. 1. This matter is taken up through Hybrid mode.

2. Heard learned counsel for the Petitioner as well as the learned counsel for the State. Perused the anticipatory bail application as well as the prayer made therein.

3. The present application has been filed under Section 482 of BNSS, 2023 by the Petitioner seeking pre-arrest bail in connection with Sundargarh Town P.S. Case No.80 of 2026, corresponding to G.R. Case No.272 of 2026, pending in the court of learned S.D.J.M., Sundargarh, for alleged commission of offences punishable under Section 318(4) of BNS.

4. At this stage, learned counsel for the Petitioner submitted that the Petitioner does not want to press this bail application and seeks liberty to surrender before the court below and moves an application for bail.

5. Considering such submissions, the Petitioner is permitted to surrender before the learned court in seisin over the matter within a period of three weeks from today and move an application for bail. In such eventuality, learned court in seisin over the matter shall release the Petitioner on bail subject to such terms and conditions as the learned Magistrate may deem just and proper with further conditions that:-

I. shall not indulge in similar type of offences while on bail;

II. shall appear before the jurisdictional Police Station once in a fortnight for a period three months, preferably on 'Sunday' in between 10.00 A.M. to 1 P.M.

Violation of any of the terms and conditions shall entail cancellation of the bail.

6. It is further directed that the bail granted to the Petitioner shall be subject to the verification of his criminal antecedent. In the event the Petitioner is having more than two criminal antecedents, then this order shall stand automatically revoked.

7. It is further directed that the bail granted to the Petitioner is subject to depositing of a cash security of Rs.4,000/- (Rupees Four Thousand) before the learned Court in seisin over the matter, which shall be kept in any Nationalized Bank in interest bearing account

initially for a period of one year which will be renewable from time to time till conclusion of trial and the same shall be abide by the final outcome of the trial of the case.

8. The ABLAPL is disposed of accordingly.

Urgent certified copy of this order be granted as per rules.

(Aditya Kumar Mohapatra)
Vacation Judge

S.K. Rout

Signature Not Verified
Digitally Signed
Signed by: SANTANU KUMAR ROUT
Reason: Authentication
Location: High Court of Orissa
Date: 24-Oct-2026 19:06:32